

The court on its own motion continues this hearing to July 23, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 11601.
2. The petitioner was appointed on August 30, 2024, but did not obtain the signed Order until November 7, 2024 or her Letters until February 13, 2025. The petitioner shall explain the 2-month delay in obtaining the Order and the 5 ½ month delay in obtaining her Letters.
3. Neither of the filed Inventory and Appraisal (item 5) forms certify that the requirements of Revenue and Taxation Code § 480 have been satisfied.
4. Petition, item 7: The petition does not address whether notice was given to the Franchise Tax Board as required by Probate Code section 9202, subdivision (c).
5. Petition, item 14: The corrected Inventory listed assets that are titled in the name of the decedent's Trust. Those assets are not part of the estate. The petitioner shall explain why they were marshalled as part of the estate.
6. Petition, item 29: Because the petition's statutory compensation calculation uses values other than those shown in the Inventory and Appraisal, a detailed schedule of gains or losses is required for assets that have been sold or disposed of, even though an accounting has been waived. (Cal. Rules of Court, rule 7.550, subd. (b).)
7. There is no Waiver of Accounting signed by Winfield Baggett who appears to be an intestate heir of the decedent through her brother. The petitioner shall explain.

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IN RE THE ESTATE OF BETTY JEAN CARLSON, DECEASED
PR24-00439

Amended First and Final Report of Administrator on Waiver of Accounting and Petition for Statutory Fees and Costs, and for Final Distribution

PREGRANT ORDER

The court on its own motion continues this hearing to July 29, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issue:

Petition, item 27: The sole asset of the estate was lost due to the deed in lieu of foreclosure. Losses on sale must be included in the calculation of the statutory fees. The petitioner shall explain.